



## CHAPTER clxxxi.

An Act to confirm certain Provisional Orders of the Local Government Board relating to Lancaster Ossett and Wakefield.      A.D. 1900.  
[30th July 1900.]

**W**HEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Local Government Act 1888 :

And whereas it is requisite that the said Orders should be confirmed by Parliament:      51 & 52 Vict.  
c. 41.

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders as altered and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force.      Orders in  
schedule  
confirmed.

2. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 12) Act 1900.      Short title.



A.D. 1900.

S C H E D U L E.

*Lancaster  
Order.*

**BOROUGH OF LANCASTER.**

*Provisional Order made in pursuance of Sections 54 and 59 of the  
Local Government Act 1888.*

To the Mayor Aldermen and Burgesses of the Borough of Lancaster ; —  
To the Justices of the Peace for the said Borough ; —  
To the School Board for the said Borough ; —  
To the Justices of the Peace for the County Palatine of Lancaster in  
Quarter Sessions assembled ; —  
To the County Council of the County Palatine of Lancaster ; —  
To the Rural District Councils of Lancaster and Lunesdale ; —  
To the Guardians of the Poor of the Lancaster and Lunesdale Unions ; —  
To the Parish Councils of Bulk Halton Quernmore Scotforth Skerton  
and Slyne-with-Hest ; —  
To the Chairman of the Parish Meeting of the Township of Heaton with  
Oxcliffe ; —  
To the Overseers of the Poor of the Parish of Halton and of each of the  
Townships of Bulk Heaton with Oxcliffe Lancaster Quernmore  
Scotforth Skerton and Slyne-with-Hest ; —  
And to all others whom it may concern.

51 & 52 Vict.  
c. 41.

WHEREAS by Section 54 of the Local Government Act 1888 the Local Government Board are empowered to make a Provisional Order for altering the boundary of any Borough and by such Order to divide or alter any electoral division ;

And whereas the Borough of Lancaster is a Borough within the meaning of the Local Government Act 1888 and the inhabitants are a body corporate by the name of the Mayor Aldermen and Burgesses of the Borough of Lancaster and act by the Council of the said Borough which now consists of the Mayor (who is also a Councillor) six Aldermen and seventeen other Councillors ;

And whereas the said Borough is an Urban District of which the Mayor Aldermen and Burgesses acting by the council are the Urban District Council ;

And whereas the said Borough has a separate commission of the peace and police force ;

And whereas the said Borough is co-extensive with the Township of Lancaster which Township is comprised in the Lancaster Union and is for the purposes of the election of Guardians divided into six wards which are coterminous with the wards of the said Borough and for each of which two Guardians are elected ;



[63 & 64. VICT.]      *Local Government Board's*      [Ch. clxxxi.]  
*Provisional Orders Confirmation (No. 12) Act, 1900.*

And whereas the unrepealed provisions of the Local Acts and Confirmation Acts mentioned in the schedule to this Order so far as the last-mentioned Acts relate to the Provisional Orders mentioned in that schedule are in force in the said Borough ;

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And whereas the Urban District Council have adopted the provisions of Parts III. and V. of the Public Health Acts Amendment Act 1890 and those provisions are accordingly in force in the said Borough ;

53 & 54 Vict.  
c. 59.

And whereas the Baths and Washhouses Acts 1846 to 1899 and the Public Libraries Acts 1892 and 1893 are in force in the said Borough ;

9 & 10 Vict. c. 74.  
10 & 11 Vict. c. 61.  
41 & 42 Vict. c. 14.  
45 & 46 Vict. c. 30.  
59 & 60 Vict. c. 59.  
62 & 63 Vict. c. 29.  
55 & 56 Vict. c. 53.  
56 Vict. c. 11.

And whereas the said Borough comprises two electoral divisions of the County Palatine of Lancaster termed respectively the Lancaster East Electoral Division and the Lancaster West Electoral Division ;

And whereas the Council of the said Borough are under the Burial Acts 1852 to 1885 the Burial Board for the said Borough ;

15 & 16 Vict.  
c. 85.  
48 & 49 Vict.  
c. 21.

And whereas the Townships of Bulk Heaton with Oxcliffe Scotforth Skerton and Slyne-with-Hest are comprised in the Lancaster Union and are contributory places in the Rural District of Lancaster and are subject to the jurisdiction of the Rural District Council of Lancaster and one Rural District Councillor is elected to represent each of the said Townships of Bulk and Skerton and two Rural District Councillors are elected to represent the said Township of Scotforth on the said Rural District Council ;

And whereas the Parish of Halton and the Township of Quernmore are comprised in the Lunesdale Union and are contributory places in the Rural District of Lunesdale and are subject to the jurisdiction of the Rural District Council of Lunesdale ;

And whereas the said Parish of Halton is included in the Lunesdale Electoral Division of the County Palatine of Lancaster and the said Townships of Bulk Scotforth and Skerton are included in the South Lonsdale Electoral Division of that County ;

And whereas the said Parish of Halton and each of the said Townships of Bulk Quernmore Scotforth Skerton and Slyne-with-Hest is a Rural Parish within the meaning of the Local Government Act 1894 for which a Parish Council has been established ;

And whereas the said Borough is a School District for which a School Board has been formed and the said Parish of Halton is subject to the jurisdiction of the School Attendance Committee appointed by the Guardians of the Lunesdale Union and the said Townships of Bulk Scotforth and Skerton are subject to the jurisdiction of the School Attendance Committee appointed by the Guardians of the Lancaster Union ;

And whereas the Lighting and Watching Act 1833 has been adopted for the said Townships of Bulk Scotforth and Skerton and the Parish Councils of those Townships are the authorities for the execution of that Act ;

And whereas the Parish Council of the Township of Scotforth act as the authority under the Burial Acts 1852 to 1885 for that Township :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 54 and 59 of the Local Government Act 1888 and by any other enactments in that behalf do hereby order that from and after the date of

51 & 52 Vict.  
c. 41.



[Ch. clxxxi.]      *Local Government Board's*      [63 & 64 Vict.]  
*Provisional Orders Confirmation (No. 12) Act, 1900.*

A.D. 1900.      the Act of Parliament confirming this Order the following provisions shall take effect:—

*Lancaster Order.*

Definitions.

Art. I. In this Order—

- (1.) The expression "the commencement of this Order" means the Ninth day of November One thousand nine hundred.
- (2.) The expression "the existing Borough" means the Borough of Lancaster as it existed immediately prior to the commencement of this Order.
- (3.) The expression "the Borough" means the existing Borough as extended by this Order.
- (4.) The expression "the Corporation" means the Mayor Aldermen and Burgesses of the existing Borough or of the Borough (as the context may require) acting by the council.
- (5.) The expressions "the Lancaster Rural District" "the Lancaster Rural Council" "the Lunesdale Rural District" and "the Lunesdale Rural Council" mean respectively the Rural District of Lancaster the Rural District Council of Lancaster the Rural District of Lunesdale and the Rural District Council of Lunesdale.
- (6.) The expressions "the County" and "the County Council" mean respectively the County Palatine of Lancaster and the County Council of that County.
- (7.) The expression "the Borough maps" means the two maps each marked "Map of the Borough of Lancaster as extended 1900" and sealed with the official seal of the Local Government Board.
- (8.) The expression "the Ward maps" means the two maps each marked "Map of the Wards of the Borough of Lancaster as extended 1900" and sealed with the official seal of the Local Government Board.
- (9.) The expression "the added areas" means the parts of the Lancaster Rural District and of the Lunesdale Rural District added to the existing Borough by this Order.
- (10.) The expressions "the added part of Bulk" "the added part of Halton" "the added part of Scotforth" and "the added part of Skerton" mean respectively the parts of each of those parishes or townships which are respectively coloured yellow purple light green and light blue on the Borough maps.
- (11.) The expressions "the Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894 and
- (12.) The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same.

Commencement of Order.

Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the Ninth day of November One thousand nine hundred :

Date of operation of Order for

Provided that for the purposes of the parish burgess lists and burgess roll and other lists to be made for the Borough under the Municipal Corporations Acts



[63 & 64 VICT.]      *Local Government Board's*      [Ch. clxxxi.]  
*Provisional Orders Confirmation (No. 12) Act, 1900.*

of the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act of the lists and registers of parochial electors and any other lists or registers to be made in pursuance of the Act of 1894 and of all proceedings preliminary or relating to any municipal election to be held on the ordinary day of election in the year one thousand nine hundred this Order shall operate from the date of the Act of Parliament confirming this Order.

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parish burgess lists &c.  
51 Viet. c. 10.

Art. III.—(1.) The boundary of the existing Borough the area whereof is coloured pink on the Borough maps shall be altered so as to include in addition to that area the parts of the Lancaster Rural District which comprise the added part of Bulk the added part of Scotforth and the added part of Skerton and the part of the Lunesdale Rural District which comprises the added part of Halton.

Extension of Borough.

(2.) The boundary of the Borough shall be that shown by the red line on the Borough maps and the whole of the area within such boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the Borough.

Art. IV.—(1.) One of the Borough maps and one of the Ward maps shall be deposited in the office of the Local Government Board and the other shall be deposited by the town clerk of the existing Borough at his office within fourteen days after the date of this Order. Copies of the Borough map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the clerk of the County Council to the clerk to the Lancaster Rural Council to the clerk to the Lunesdale Rural Council and to the Board of Agriculture and a copy of the Ward map so certified shall be sent within the said period to the Board of Agriculture.

Deposit of maps.

(2.) Copies of or extracts from the Borough map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of such map so far as relates to the boundary of the Borough and such map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the Borough and any such person shall be entitled to a copy of or extract from such map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation. All fees so received shall be carried to the credit of the borough fund.

Copies of map to be evidence.

Art. V. The powers and duties of the justices of the peace appointed for the existing Borough of the clerk to such justices and of the police constables and other peace officers of the existing Borough shall extend to and apply throughout the Borough. Provided that every person committing an offence in any part of the added areas prior to the commencement of this Order shall be tried adjudicated on and dealt with as if this Order had not been made.

Powers and duties of justices &c. extended.

Art. VI. For the purposes of the parish burgess lists and burgess roll and other lists to be made under the Municipal Corporations Acts and all matters in relation thereto the added areas shall be deemed to have always been part of the Borough and the town clerk of the existing Borough shall be the town clerk of the Borough and if any difficulty arise in making out revising or otherwise dealing with such lists and roll or the lists of county electors and the county register to be made for the County in pursuance of the County Electors

Parish burgess lists &c.



[Ch. clxxxi.]      *Local Government Board's*      [63 & 64 Vict.]  
*Provisional Orders Confirmation (No. 12) Act, 1900.*

A.D. 1900.      Act 1888 or any Act amending that Act or the lists and registers of parochial electors the Local Government Board may make such Order as shall appear to them to be necessary to give effect to the provisions of this Order and may vary so far as shall be necessary the provisions in force with regard to such lists roll and registers.

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Councillors.      Art. VII. The number of Councillors of the Borough shall be increased from eighteen to twenty-four and the number of Aldermen of the Borough shall be increased from six to eight.

Division into wards.      Art. VIII. Subject as regards any future alteration of the wards hereby constituted to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect :—

Boundaries of wards.

(1.) For the purposes of the election of Councillors the Borough shall be divided into eight wards to be termed respectively the Bulk Ward the Castle Ward the John O'Gaunt Ward the Park Ward the Queen's Ward the Saint Anne's Ward the Scotforth Ward and the Skerton Ward.

(2.) Each of the said wards shall comprise that portion of the Borough which is indicated by a separate colour and distinguished by the name of the ward on the Ward maps.

(3.) Three Councillors shall be assigned to each of the said wards.

Special provisions for first election of Councillors in 1900.

Art. IX. For the purposes of the election of a town council for the Borough in pursuance of the Municipal Corporations Acts in the month of November One thousand nine hundred the following provisions shall apply :—

(a.) The town clerk and the Mayor of the existing Borough or such other persons as the Local Government Board shall appoint shall perform the duties devolving upon the town clerk and Mayor respectively under the Municipal Corporations Acts and the Mayor of the existing Borough or such other person as he shall appoint shall be the returning officer at the election for each ward.

(b.) Twenty-four Councillors of the Borough shall be elected on the First day of November One thousand nine hundred and eight Aldermen of the Borough shall be elected on the Ninth day of November One thousand nine hundred.

(c.) Notwithstanding anything in the Municipal Corporations Acts to the contrary all the Councillors of the existing Borough who shall be in office on the First day of November One thousand nine hundred shall go out of office on that date and all the Aldermen of the existing Borough who shall be in office on the Eighth day of November One thousand nine hundred shall go out of office on that date and all such Councillors and Aldermen shall be eligible for election as Councillors on the First day of November One thousand nine hundred.

Retirement of Councillors and Aldermen elected in 1900.

Art. X.—(1.) The Councillors elected for the Borough in the year one thousand nine hundred in pursuance of this Order shall retire as follows :—

(a.) The Councillor for each ward who is elected by the smallest number of votes on the First day of November One thousand nine hundred and one.

(b.) The Councillor for each ward who is elected by the largest number of votes on the First day of November One thousand nine hundred and three.

(c.) The other Councillor for each ward on the First day of November One thousand nine hundred and two.



(2.) The Aldermen elected for the Borough in the year one thousand nine hundred shall retire as follows :— A.D. 1900.

(a.) The four Aldermen elected by the smallest number of votes on the Ninth day of November One thousand nine hundred and three ;

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(b.) The other four Aldermen on the Ninth day of November One thousand nine hundred and six :

Provided that if for any reason it is doubtful which of the Councillors or Aldermen as the case may be ought to retire on the dates above specified the Council of the Borough shall on the Ninth day of November One thousand nine hundred or at the next following quarterly meeting and not later by a majority of votes or in case of an equality of votes by the casting vote of the chairman determine which of the Councillors or Aldermen as the case may be shall go out of office on the dates above specified respectively.

Art. XI. The unrepealed provisions of the Local Acts and of the Confirmation Acts mentioned in the schedule to this Order so far as the last-mentioned Acts respectively relate to the Provisional Orders mentioned in that schedule as the same respectively are in force within the existing Borough at the commencement of this Order shall extend and apply to the Borough and any reference therein to the existing Borough and the Corporation shall be deemed to refer to the Borough and the Corporation thereof. Local Acts and  
Orders.

Art. XII.—(1.) All byelaws and regulations and every list of tolls and table of fees and payments and scale of charges made by the Corporation which at the commencement of this Order are in force in the existing Borough shall thenceforth apply to the Borough until or except in so far as any such byelaws or regulations or list of tolls or table of fees and payments and scale of charges may be altered or repealed. Byelaws &c.

(2.) All byelaws and regulations made by the Lancaster Rural Council or the Lunesdale Rural Council which immediately before the commencement of this Order are in force in any part of the added areas shall on that date cease to be in force except as regards any work commenced before that date or any work for which plans shall either have been approved by the Rural Council before that date or shall have been sent to the surveyor or clerk to the Rural Council one month at least before that date and shall not have been disapproved by the Rural Council. As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of such work in like manner and with the like effect as if such byelaws had been made by the Corporation and as if the Corporation and the Borough were referred to therein instead of the Rural Council and the Rural District respectively. Provided that any proceedings which might have been taken by either Rural Council against any person for any offence committed before the commencement of this Order against any byelaws and regulations made by such Rural Council and in force on that date in any part of the added areas may be taken by the Corporation as if those byelaws and regulations had remained in force and the Corporation had been substituted therein for such Rural Council.

(3.) Any byelaws and regulations made by the Lunesdale Rural Council which at the commencement of this Order are in force in the Lunesdale Rural



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District shall thenceforth apply to the areas added by this Order to the Lunesdale Rural District until or except in so far as any such byelaws or regulations may be altered or repealed and all byelaws and regulations made by the Lancaster Rural Council which immediately before the commencement of this Order are in force in the said areas shall on that date cease to be in force.

Town clerk  
and other  
officers  
continued.

Art. XIII.—(1.) The town clerk and all other officers and servants of the Corporation of the existing Borough who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the Borough and shall hold their offices by the same tenure as at that date.

Borough  
auditors.

(2.) The auditors who are in office at the commencement of this Order shall continue in office and shall be the borough auditors until the next ordinary day of election of borough auditors.

Compensation  
to existing  
officers.

Art. XIV.—(1.) Every officer and servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary shall be entitled to have compensation paid to him by the Corporation for such pecuniary loss and in determining such compensation regard shall be had to the conditions and other circumstances required by sub-section (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid in the case of any such officer or servant whose office or employment relates wholly or partly to sanitary purposes as defined by the Public Health Act 1875 out of the fund or rate applicable to the payment of expenses which in pursuance of the last-mentioned Act may be defrayed out of the district fund and general district rate and in the case of any other such officer or servant out of the borough fund of the Borough and the provisions of sub-sections (2) to (7) of the said Section 120 shall apply with such modifications (if any) as may be required Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

(2.) Any such officer or servant whose salary shall be reduced within two years from the commencement of this Order on the ground that his duties have been diminished in consequence hereof shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

Actions &c.  
not to abate.

Art. XV.—(1.) If at the commencement of this Order any action or proceeding or any cause of action or proceeding is pending or existing by or against the Lancaster Rural Council the Lunesdale Rural Council the Parish Council of Bulk the Parish Council of Scotforth or the Parish Council of Skerton in relation exclusively to any part of the added areas the same shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Corporation of the Borough.

Saving for  
contracts &c.

(2.) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by either of the said Rural Councils or their predecessors or any of the said Parish Councils in relation exclusively to any part of the added areas



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shall be of as full force and effect against or in favour of the Corporation of the Borough and may be continued and enforced as fully and effectually as if instead of such Rural Council or their predecessors or such Parish Council the Corporation had done or suffered the same or been a party thereto.

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*Order.*

Art. XVI. All property vested in the Corporation at the commencement of this Order for the benefit of the existing Borough shall be held by the Corporation for the benefit of the Borough and the Corporation shall hold enjoy and exercise for the benefit of the Borough all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing Borough and all liabilities which on the date aforesaid attached to the Corporation in respect of the existing Borough shall from and after that date attach to them in respect of the Borough.

Corporation  
property &c.

Art. XVII. Subject to the provisions of this Order :—

Property &c.  
of local  
authorities of  
added areas.

(1.) All property and liabilities which immediately before the commencement of this Order are vested in or attached to the Lancaster Rural Council the Lunesdale Rural Council the Parish Council of Bulk the Parish Council of Scotforth or the Parish Council of Skerton in relation exclusively to any part of the added areas shall be transferred to vested in and attach to the Corporation as Urban District Council and any property and liabilities vested in or attached to either of the said Rural Councils or any of the said Parish Councils in relation to any part of the added areas conjointly with any other area shall be a matter for adjustment under Section 62 of the Act of 1888.

(2.) The Councils mentioned in subdivision (1) of this Article shall cease to exercise any powers or have any duties within any part of the added areas.

Cesser of juris-  
diction of local  
authorities of  
added areas.

(3.) All arrears of rates made by any overseers of the poor for the purposes of the Public Health Acts or the Lighting and Watching Act 1833 or for highway expenses which at the commencement of this Order are due or owing in respect of hereditaments in the added areas may be collected and recovered as if this Order had not been made and when collected and recovered shall be applied towards the discharge of such precept of any of the Councils mentioned in subdivision (1) of this Article as the circumstances may require and as at that date shall be in force and not satisfied and the balances if any shall be paid to the Corporation.

Arrears of  
rates &c.

Art. XVIII. So much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the borough fund and borough rate of the existing Borough shall be charged upon the borough fund and borough rate of the Borough and so much of any sums borrowed by the Corporation as will on that date be owing and charged upon any fund or rate applicable in the existing Borough to the payment of expenses which in pursuance of the Public Health Act 1875 may be defrayed out of the district fund and general district rate or which by any Act are required or authorised to be defrayed out of a general district rate or any rate in the nature of a general district rate shall be charged upon the same fund or rate of the Borough and all such sums shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in

Mortgage  
debts of  
Corporation.



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A.D. 1900.      respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

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County police

Art. XIX.—(1.) At the commencement of this Order such a number if any and such members if any of the police force of the County as shall be determined by agreement to be made as soon as practicable after the date of the Act of Parliament confirming this Order between the Standing Joint Committee of the County and the Watch Committee of the existing Borough or in default of such agreement as shall be determined by a Secretary of State shall be transferred to and become part of the police force of the Borough and any member of the county police force so transferred shall hold office upon the same tenure and upon the same terms and conditions as if this Order had not been made and while he performs the same or similar duties his remuneration emoluments and allowances and the pension (if any) to which he is entitled shall not be less than they would have been if this Order had not been made.

53 & 54 Vict.  
c. 45.

(2.) The provisions of Section 15 (2) of the Police Act 1890 shall extend and apply to and in relation to any member of the police force transferred under the powers of this Article as if such member had removed with the written sanction of the Chief Constable of the County.

Alteration of  
School District.

Art. XX. For the purposes of the Elementary Education Acts 1870 to 1899—

- (a) the members of the existing School Board who shall be in office at the commencement of this Order shall be deemed to have been elected and shall be the School Board for the Borough ;
- (b) any byelaws in force in the existing Borough at the commencement of this Order shall thenceforth apply to the Borough until revoked or altered and any byelaws made by the School Attendance Committees of the Lancaster and Lunesdale Unions shall cease to be in force in the added areas ;
- (c) any byelaws made by the School Attendance Committee of the Lunesdale Union and in force at the commencement of this Order shall thenceforth apply to the areas added by this Order to the Parish of Halton and the Township of Quernmore and any byelaws made by the School Attendance Committee of the Lancaster Union shall cease to be in force in the said areas.

Burial  
Authorities.

Art. XXI.—(1.) The Council of the Borough shall be the Burial Board for the Borough and shall have within the Borough to the exclusion of any other burial authority all the powers rights duties and liabilities of a Burial Board under the Burial Acts 1852 to 1885.

(2.) The Parish Council of Scotforth shall cease to act as the authority under the Burial Acts 1852 to 1885 for that Township and all property and liabilities of the said Parish Council as such authority shall be transferred to vest in and attach to the Council of the Borough Any regulations table of fees and payments and scale of charges made or fixed by the Council of the Borough acting as the Burial Board or their predecessors shall until the same be duly revoked altered or varied apply in the case of any burial ground transferred in pursuance of this subdivision as if the same had been made or fixed by the Council of the Borough acting as the Burial Board or their predecessors in relation to such burial ground and any regulations table of fees and payments and scale of charges made or fixed



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by the said Parish Council in relation to such burial ground shall cease to have effect :

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Provided that nothing herein contained shall prejudice or affect any right to any fee or to any payment in substitution for any fee or any exclusive right of burial or any right of one or more burials or any right of placing any monument tablet or gravestone or any similar right which any person may prior to the commencement of this Order have acquired in relation to such burial ground.

Art. XXII. The provisions of the Baths and Washhouses Acts 1846 to 1899 of Parts III. and V. of the Public Health Acts Amendment Act 1890 and of the Public Libraries Acts 1892 and 1893 shall be in force in and apply to the Borough as if the same had been adopted therein.

Adoptive Acts.

Art. XXIII. Subject to the provisions of Section 54 of the Act of 1888 the following provisions shall from and after the commencement of this Order take effect :—

Electoral  
Divisions and  
County  
Councillors.

(1.) The Borough shall be divided into two electoral divisions which shall be termed respectively the Lancaster East Electoral Division and the Lancaster West Electoral Division and the Lancaster East Electoral Division shall comprise the Bulk Ward the John O'Gaunt Ward the Park Ward and the Saint Anne's Ward as constituted by this Order and the Lancaster West Electoral Division shall comprise the Castle Ward the Queen's Ward the Scotforth Ward and the Skerton Ward as constituted by this Order.

(2.) The County Councillors who at the commencement of this Order represent respectively the Lancaster East and Lancaster West Electoral Divisions as constituted at that date shall continue in office for the period for which they would have continued in office if this Order had not been made and shall be deemed to have been elected respectively for the Lancaster East and Lancaster West Electoral Divisions as hereby constituted.

(3.) The Lunesdale and South Lonsdale Electoral Divisions shall be diminished by the exclusion from each electoral division of so much of the added areas as at the date of this Order is comprised in such electoral division and the said electoral divisions as hereby altered shall continue to be electoral divisions of the County and the persons who immediately prior to the commencement of this Order are the County Councillors representing the said electoral divisions shall from and after that date represent those divisions as hereby altered as if they had been originally elected to represent the divisions as hereby altered.

Art. XXIV.—(1.) (a.) The added part of Halton and the added part of Scotforth shall be separated from the parishes or townships to which at the date of this Order they respectively belong and shall be amalgamated with the Township of Lancaster.

Alteration of  
parish and  
townships.

(b.) The added part of Bulk shall be amalgamated with the Township of Lancaster and the remainder of the Township of Bulk shall be amalgamated with the Township of Quernmore.

(c.) The added part of Skerton shall be amalgamated with the Township of Lancaster and the portion of the Township of Skerton which is coloured dark green on the Borough maps shall be amalgamated with the Parish of Halton the portion of the said township which is coloured dark blue on the Borough maps



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Parish  
Councils  
and Parish  
Meetings.

shall be amalgamated with the Township of Heaton with Oxcliffe and the remaining portion of the said township which is coloured brown on the Borough maps shall be amalgamated with the Township of Slyne-with-Hest.

(2.)—(a.) The Parish Councils and Parish Meetings of Bulk and Skerton shall be abolished and cease to exist and any powers and duties transferred by the Act of 1894 to such Parish Councils or Parish Meetings so far as regards the added part of Bulk and the added part of Skerton shall be vested in exerciseable by and imposed on the persons or authorities in whom they would be vested or by whom they would be exerciseable or on whom they would be imposed if the added part of Bulk and the added part of Skerton had been included in an Urban District on the appointed day within the meaning of the Act of 1894 and any property or liabilities held or incurred so far as regards the added part of Bulk and the added part of Skerton by virtue of or for the purposes of the said powers or duties shall pass to and vest in or attach to the persons and authorities aforesaid. Any property or liabilities of the Parish Councils held or incurred so far as regards the added part of Bulk and the added part of Skerton otherwise than by virtue or for the purposes of the said powers or duties shall be transferred to and vest in or attach to the Corporation.

(b.) Any property or liabilities held or incurred by the Parish Council of Bulk so far as regards that part of the Township of Bulk which is by this Order added to the Township of Quernmore shall be transferred to and vest in the Parish Council of Quernmore.

(c.) Any property or liabilities held or incurred by the Parish Council of Skerton so far as regards those parts of the Township of Skerton which are by this Order added respectively to the Parish of Halton and the Township of Slyne-with-Hest shall be transferred to and vest in or attach to the Parish Councils of Halton and Slyne-with-Hest respectively.

(3.) The Parish Councils of the Parish of Halton and of the Townships of Quernmore Scotforth and Slyne-with-Hest shall be deemed to have been elected and shall be the Parish Councils for that parish and those townships as altered by this Order and the Parish Councils of the Parish of Halton and of the Township of Scotforth shall cease to exercise any powers or duties within any part of the added areas.

Audit of  
accounts of  
Parish  
Councils.

(4.) The accounts of the Parish Councils of Bulk and Skerton and of their committees and officers if any up to the commencement of this Order shall be audited in like manner and with the like incidents and consequences as if this Order had not been made :

Provided that such audit may be held as soon as practicable after that date any statutory provision or regulation as to the time of holding the audit to the contrary notwithstanding :

Provided also that any sum certified by the district auditor at such audit to be due from any person shall in the case of the Parish Council of Bulk be apportioned between the Corporation and the Parish Council of Quernmore according to the rateable value of the added part of Bulk and that part of the Township of Bulk which is by this Order added to the Township of Quernmore and in the case of the Parish Council of Skerton between the Corporation the



[63 & 64 VICT.]      *Local Government Board's*      [Ch. clxxxi.]  
*Provisional Orders Confirmation (No. 12) Act, 1900.*

Parish Councils of Halton and Slyne-with-Hest and the chairman and overseers of the Township of Heaton with Oxcliffe according to the rateable value of the added part of Skerton and the portions of the Township of Skerton which are by this Order added respectively to the Parish of Halton and the Townships of Slyne-with-Hest and Heaton with Oxcliffe and the amounts so apportioned shall be paid to the treasurer of the Borough the treasurers of the Parish Councils of Halton Quernmore and Slyne-with-Hest and the said chairman and overseers respectively.

A.D. 1900

*Lancaster  
Order.*

Art. XXV. Those parts of the Townships of Bulk and Skerton which are by this Order added respectively to the Township of Quernmore and the Parish of Halton shall cease to form part of the Rural District of Lancaster and shall be added to the Rural District of Lunesdale.

Alteration of  
Rural Districts.

Art. XXVI.—(1.) The persons who at the commencement of this Order represent respectively the Parish of Halton and the Township of Quernmore on the Lunesdale Rural Council and the Lunesdale Board of Guardians shall be deemed to represent the parish and township as altered by this Order as if they had been originally elected to represent the parish and township as altered.

Rural District  
Councillors  
and Guardians.

(2.) Subject to the provisions of Section 60 of the Act of 1894 :—

(a.) The Township of Lancaster shall for the purposes of the election of Guardians be divided into eight wards.

(b.) The wards into which the existing Township is divided shall remain unaltered and the added areas shall be formed into two wards one to be termed the Bulk Ward and to comprise the added part of Skerton the added part of Bulk and the added part of Halton and the other to be termed the Scotforth Ward and to comprise the added part of Scotforth.

(c.) The persons who at the commencement of this Order are the Rural District Councillors representing respectively the Townships of Bulk and Skerton and such one of the two persons who at that date are Rural District Councillors representing the Township of Scotforth on the Lancaster Rural Council as is chosen by the Lancaster Rural Council by ballot at their meeting held next before the commencement of this Order shall cease to act as Rural District Councillors but shall continue to act as members of the Board of Guardians of the Lancaster Union.

(d.) The persons representing the Townships of Bulk and Skerton shall be deemed to be Guardians elected for the Bulk Ward of the Township of Lancaster and such one of the two persons representing the Township of Scotforth as is chosen as aforesaid shall be deemed to be a Guardian elected for the Scotforth Ward of the Township of Lancaster and all such persons shall continue to hold office in the capacity of Guardian until the day upon which they would have retired if this Order had not been made.

Art. XXVII. Nothing in this Order shall affect the ecclesiastical divisions of any parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment which now is applicable for the benefit of any of the existing parishes affected by this Order.

Ecclesiastical  
divisions and  
charities.



[Ch. clxxxi.]      *Local Government Board's*      [63 & 64 VICT.]  
*Provisional Orders Confirmation (No. 12) Act, 1900.*

A.D. 1900.      Art. XXVIII.—(1.) Until new valuation lists are made—

*Lancaster  
Order.*

Valuation  
lists.

- (a) the portions of the valuation lists of the Parish of Halton and the Townships of Bulk Scotforth and Skerton which relate respectively to hereditaments in the added part of Halton the added part of Bulk the added part of Scotforth and the added part of Skerton shall be deemed to form part of the valuation list of the Township of Lancaster ;
- (b) the portion of the valuation list of the Township of Bulk which relates to hereditaments in that part of the said Township which by this Order is added to the Township of Quernmore shall be deemed to form part of the valuation list of that Township ;
- (c) the portion of the valuation list of the Township of Skerton which relates to hereditaments in that part of the said Township which by this Order is added to the Parish of Halton shall be deemed to form part of the valuation list of that parish the portion of the valuation list of the Township of Skerton which relates to hereditaments in that part of the said Township which by this Order is added to the Township of Heaton with Oxcliffe shall be deemed to form part of the valuation list of that Township and the portion of the valuation list of the Township of Skerton which relates to hereditaments in that part of the said Township which by this Order is added to the Township of Slyne-with-Hest shall be deemed to form part of the valuation list of that Township.

County rate  
basis.

(2.)—(a.) Subject to any future revision the basis or standard of county rate for the County shall be deemed to be altered—

- by the deduction from the amount appearing in such basis or standard as the total annual value of the property in the Parish of Halton and the Townships of Bulk Scotforth and Skerton of such a sum as will represent the annual value of the property in the added part of Halton the added part of Bulk the added part of Scotforth and the added part of Skerton respectively and by the addition of such sum to the amount appearing in such basis or standard as the total annual value of the property in the Township of Lancaster ;
- by the addition to the amount appearing in such basis or standard as the total annual value of the property in the Township of Quernmore of such a sum as will represent the annual value of the property in that part of the Township of Bulk which by this Order is added to the Township of Quernmore ;
- by the addition to the amount appearing in such basis or standard as the total annual value of the property in the Parish of Halton of such a sum as will represent the annual value of the property in that part of the Township of Skerton which by this Order is added to the Parish of Halton ;
- by the addition to the amount appearing in such basis or standard as the total annual value of the property in the Township of Heaton with Oxcliffe of such a sum as will represent the annual value of the property in that part of the Township of Skerton which by this Order is added to the Township of Heaton with Oxcliffe ; and
- by the addition to the amount appearing in such basis or standard as the total annual value of the property in the Township of Slyne-with-Hest of such a sum as will represent the annual value of the property in that part of the Township of Skerton which by this Order is added to the Township of Slyne-with-Hest.



(b.) For the purposes of this Article the sum which will represent the annual value of the property in the added part of Halton the added part of Bulk the added part of Scotforth or the added part of Skerton or in any of the areas added by this Order to the Parish of Halton or the Townships of Quernmore Heaton with Oxcliffe and Slyne-with-Hest shall in each case be such an amount as in relation to the amount appearing in the basis or standard of county rate as the total annual value of the existing parish or township is in the same proportion as the assessable value of the property in the added part or in any such area bears to the total assessable value of property in the existing parish or township.

A.D. 1900.  
*Lancaster  
Order.*

(c.) For the purposes of this Article assessable value means one-half of the rateable value of the agricultural land according to the valuation list for the time being in force in the existing parish or township together with the rateable value according to such list of the buildings and other hereditaments not being agricultural land.

Art. XXIX. For the purposes of the registers of persons entitled to vote at an election of Members of Parliament of the register of parochial electors and of jury lists the parishes affected by this Order shall be deemed to continue unaltered until the new registers come into operation :

Saving for  
existing  
lists of  
parliamentary  
voters &c.

Provided that for the purposes of any election under the Act of 1894 to be held for any area affected by this Order and of the holding of Parish Meetings in any parish affected by this Order the County Council shall as soon as may be practicable after the commencement of this Order cause the register of parochial electors to be altered in such manner as may be necessary to give effect to the alterations made by this Order.

Art. XXX.—(1.) Every person who has acquired or who on or before the commencement of this Order shall acquire a settlement in any existing parish affected by this Order shall be deemed to have acquired a settlement in the parish comprising the area in which the acts or circumstances conferring such settlement shall have been done or occurred or if such acts or circumstances shall have been done or occurred in more than one parish such settlement shall be in the parish comprising the place of residence of such person at the time of acquiring such settlement.

Settlements of  
paupers.

(2.) Any person who shall have acquired a status of irremovability from any existing parish affected by this Order shall be deemed to have acquired a status of irremovability from the parish comprising the area in which he shall reside at the commencement of this Order or (if he shall then be in receipt of relief) from the parish comprising the area in which he was residing at the time of becoming chargeable.

Irremovability  
of paupers.

(3.) For all purposes of settlement and removal residence prior to the commencement of this Order in any one of the areas added by this Order to the Parish of Halton or to any of the Townships of Heaton with Oxcliffe Lancaster Quernmore and Slyne-with-Hest shall be deemed to be residence in the parish or township to which any such area is added.

Residence of  
paupers.

Art. XXXI. Notwithstanding the alteration effected in the areas of parishes by this Order all contribution orders made by the Guardians of the Poor of the Lancaster and Lunesdale Unions and all precepts made by the Lancaster Rural

Saving for  
contribution  
orders and  
precepts.



[Ch. clxxxi.]      *Local Government Board's*      [63 & 64 VICT.]  
*Provisional Orders Confirmation (No. 12) Act, 1900.*

A.D. 1900.  
 —  
*Lancaster*  
*Order.*  
 Overseers.

Arrears of  
 rates.

Council and the Lunesdale Rural Council before the commencement of this Order shall be as valid in law as if this Order had not been made.

Art. XXXII. The Overseers of the Poor of the Townships of Bulk and Skerton shall at the commencement of this Order go out of office.

Art. XXXIII.—(1.) All arrears of rates which at the commencement of this Order are due or owing in respect of hereditaments in the added part of Bulk shall be collected and recovered by the Overseers of the Poor of the Township of Lancaster and all such arrears of rates due or owing in respect of hereditaments in that part of the township which is added by this Order to the Township of Quernmore shall be collected and recovered by the Overseers of the Poor of that township.

(2.) All arrears of rates which at the commencement of this Order are due or owing in respect of hereditaments in the added part of Skerton shall be collected and recovered by the Overseers of the Poor of the Township of Lancaster and all such arrears of rates due or owing in respect of hereditaments in those parts of the Township of Skerton which are added by this Order to the Parish of Halton and the Townships of Heaton with Oxcliffe and Slyne-with-Hest shall be collected and recovered by the Overseers of the Poor of the parish or township to which such parts are respectively added.

(3.) All arrears of rates due or owing at the commencement of this Order in respect of hereditaments in the added areas other than the added part of Bulk and the added part of Skerton shall be collected and recovered by the Overseers of the Poor of the existing parishes comprising those areas as if this Order had not been made.

Differential  
 rating in  
 added areas.

Art. XXXIV.—(1.) Any rate leviable by the Corporation within the added part of Bulk the added part of Halton and the added part of Scotforth for the payment of expenses which in pursuance of the Public Health Act 1875 may be defrayed out of the district fund and general district rate or which by any Act are required or authorised to be defrayed out of a general district rate or any rate in the nature of a general district rate shall be made and levied so that the amount of rate on each pound of the rateable value of any hereditament assessed therein shall not in any one year during a period of ten years from the commencement of this Order exceed a sum of one shilling and twopence.

(2.) Any rate leviable by the Corporation within the added part of Skerton for the payment of expenses which in pursuance of the Public Health Act 1875 may be defrayed out of the district fund and general district rate or which by any Act are required or authorised to be defrayed out of a general district rate or any rate in the nature of a general district rate shall be made and levied so that the amount of rate on each pound of the rateable value of any hereditament assessed therein shall not in any one year during a period of ten years from the commencement of this Order exceed a sum of one shilling.

Short title.

Art. XXXV. This Order may be cited as the Lancaster Order 1900.



[63 & 64 Vict.]      *Local Government Board's*      [Ch. clxxxi.]  
*Provisional Orders Confirmation (No. 12) Act, 1900.*

The SCHEDULE above referred to.

A.D. 1900.

*Lancaster  
Order.*

PART I.—LOCAL ACTS.

| Session and Chapter.        | Title.                                                                                                                                                                    |
|-----------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 36 Geo. III. c. xi. - -     | An Act for embanking draining and otherwise improving a certain stinted pasture called Lancaster Marsh in the County Palatine of Lancaster.                               |
| 5 Geo. IV. c. lxvi. - -     | An Act for lighting watching paving cleansing and improving the Streets Highways and Places within the Borough and Town of Lancaster in the County Palatine of Lancaster. |
| 15 Vict. c. lxvii. - -      | The Lancaster Waterworks and Gas Act 1852.                                                                                                                                |
| 18 & 19 Vict. c. xlii. -    | The Lancaster Waterworks and Gas Amendment Act 1855.                                                                                                                      |
| 19 Vict. c. vi. - - -       | The Lancaster Gas Company's Act 1856.                                                                                                                                     |
| 27 & 28 Vict. c. cviii. -   | The Lancaster Local Board of Health Act 1864.                                                                                                                             |
| 39 & 40 Vict. c. clxxxvi. - | The Lancaster Water and Improvement Act 1876.                                                                                                                             |
| 42 & 43 Vict. c. cxxxvi. -  | The Lancaster Gas Act 1879.                                                                                                                                               |
| 43 & 44 Vict. c. lxxvii. -  | The Lancaster Corporation Act 1880.                                                                                                                                       |
| 51 & 52 Vict. c. clv. - -   | The Lancaster Corporation Act 1888.                                                                                                                                       |
| 55 Vict. c. xxii. - - -     | The Lancaster Marsh Act 1892.                                                                                                                                             |

PART II.—CONFIRMATION ACTS.

| Session and Chapter.       | Short Title.                                                                              | Order relating to Lancaster thereby confirmed. |
|----------------------------|-------------------------------------------------------------------------------------------|------------------------------------------------|
| 50 Vict. c. viii. - - -    | The Local Government Board's Provisional Orders Confirmation (No. 6) Act 1886.            | Order dated 25th May 1886.                     |
| 53 & 54 Vict. c. clxxxvii. | Electric Lighting Orders Confirmation (No. 2) Act 1890.                                   | The Lancaster Electric Lighting Order 1890.    |
| 57 & 58 Vict. c. cxxiii.   | The Local Government Board's Provisional Orders Confirmation (No. 11) Act 1894.           | The Lancaster Order 1894.                      |
| 59 Vict. c. ix. - - -      | The Local Government Board's Provisional Orders Confirmation (No. 15) Act 1895 Session 2. | The Lancaster Order 1895.                      |
| 59 & 60 Vict. c. cx. - -   | The Local Government Board's Provisional Orders Confirmation (No. 18) Act 1896.           | The Lancaster Order 1896.                      |

Given under the Seal of Office of the Local Government Board this  
Sixteenth day of May One thousand nine hundred.

(L.S.)

HENRY CHAPLIN President.  
S. B. PROVIS Secretary.



A.D. 1900.

BOROUGH OF OSSETT.

*Ossett  
Order.*

*Provisional Order made in pursuance of Sections 54 and 59 of the  
Local Government Act 1888.*

To the Mayor Aldermen and Burgesses of the Borough of Ossett ; —  
 To the Justices of the Peace for the said Borough ; —  
 To the School Attendance Committee appointed by the Council of the said  
 Borough ; —  
 To the Justices of the Peace for the County of the West Riding of  
 Yorkshire in Quarter Sessions assembled ; —  
 To the County Council of the West Riding of Yorkshire ; —  
 To the Rural District Council of Wakefield ; —  
 To the Guardians of the Poor of the Dewsbury and Wakefield Unions ; —  
 To the Parish Council of Alverthorpe ; —  
 To the School Board for the Parish of Alverthorpe ; —  
 To the Overseers of the Poor of the Parish of Alverthorpe and of the  
 Township of Ossett ; —  
 To the Joint Committee appointed by the Parish Councils of Alverthorpe  
 and Outwood and exercising the powers and duties of the authority  
 under the Burial Acts 1852 to 1885 ; —  
 And to all others whom it may concern.

51 & 52 Vict.  
c. 41.

WHEREAS by Section 54 of the Local Government Act 1888 the Local  
 Government Board are empowered to make a Provisional Order for altering the  
 boundary of any Borough and by such Order to divide or alter any electoral  
 division ;

And whereas the Borough of Ossett is a borough within the meaning of the  
 Local Government Act 1888 and the inhabitants are a body corporate by the  
 name of the Mayor Aldermen and Burgesses of the Borough of Ossett and act  
 by the Council of the said Borough which now consists of the Mayor (who is  
 also a Councillor) four Aldermen and eleven other Councillors and the said  
 Borough is for the purposes of the election of Councillors divided into four wards  
 two of which are termed the Central Ward and the East Ward ;

And whereas the said Borough is an Urban District of which the Mayor  
 Aldermen and Burgesses acting by the council are the Urban District Council ;

And whereas the said Borough has a separate commission of the peace ;

And whereas the unrepealed provisions of the Local Act and Confirmation  
 Acts mentioned in the schedule to this Order so far as the last-mentioned  
 Acts relate to the Provisional Orders mentioned in that schedule are in force in  
 the said Borough ;

And whereas the Urban District Council have adopted the provisions of—

(a.) The Infectious Disease (Prevention) Act 1890 and

(b.) The Public Health Acts Amendment Act 1890 ;

and those provisions are accordingly in force in the said Borough ;

And whereas the Public Libraries Acts 1892 and 1893 are in force in the said  
 Borough ;

And whereas the Parish of Alverthorpe is a contributory place in the Rural  
 District of Wakefield and is subject to the jurisdiction of the Rural District  
 Council of Wakefield ;

53 & 54 Vict.  
c. 34.

53 & 54 Vict.  
c. 59.

55 & 56 Vict.  
c. 53.

56 Vict. c. 11.



[63 & 64 VICT.]      *Local Government Board's*      [Ch. clxxxi.]  
*Provisional Orders Confirmation (No. 12) Act, 1900.*

And whereas the predecessors of the said Rural District Council adopted the provisions of— A.D. 1900.

(a.) The Infectious Disease (Prevention) Act 1890 and

(b.) Part III. of the Public Health Acts Amendment Act 1890 which are applicable to Rural Districts ;

*Ossett  
Order.*

and those provisions are accordingly in force in the said Rural District ;

And whereas the said Borough is co-extensive with the Township of Ossett in the Dewsbury Union and two Guardians are elected to represent the said Township and the said Parish of Alverthorpe is included in the Wakefield Union ;

And whereas the said Borough is included in the Ossett Electoral Division of the County of the West Riding of Yorkshire and the said Parish of Alverthorpe is included in the Alverthorpe Electoral Division of that County ;

And whereas the said Borough and the said Parish of Alverthorpe are school districts and the said Borough is subject to the jurisdiction of a School Attendance Committee appointed by the Council of the Borough and the said Parish is subject to the jurisdiction of the School Board for that Parish ;

And whereas the said Parish of Alverthorpe is a Rural Parish within the meaning of the Local Government Act 1894 for which a Parish Council has been established ;

And whereas by virtue of sub-section (2) of Section 53 of the Local Government Act 1894 the powers and duties of the authority under the Burial Acts 1852 to 1885 for the area now comprised in parts of each of the Parishes of Alverthorpe and Outwood were transferred to the Parish Councils of Alverthorpe and Outwood and such powers and duties are exercised by a Joint Committee appointed in pursuance of the said sub-section ;

And whereas by the Wakefield Order 1900 it is provided that on the Ninth day of November One thousand nine hundred the boundary of the City of Wakefield shall be altered so as to include in addition to the area of that City that part of the Rural District of Wakefield which comprises the part of the said Parish of Alverthorpe indicated in that Order and that on the said date the said part of the said parish shall be amalgamated with the Parish of Wakefield :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 54 and 59 of the Local Government Act 1888 and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect :— 51 & 52 Vict.  
c. 41.

Art. I. In this Order—

*Definitions.*

(1.) The expression “the commencement of this Order” means the Ninth day of November One thousand nine hundred.

(2.) The expression “the existing Borough” means the Borough of Ossett as it existed immediately prior to the commencement of this Order.

(3.) The expression “the Borough” means the existing Borough as extended by this Order.

(4.) The expression “the Corporation” means the Mayor Aldermen and Burgesses of the existing Borough or of the Borough (as the context may require) acting by the council.

(5.) The expressions “the Rural District” and “the Rural Council” mean respectively the Rural District of Wakefield and the Rural District Council of that district.



[Ch. clxxxi.]      *Local Government Board's*      [63 & 64 Vict.]  
*Provisional Orders Confirmation (No. 12) Act, 1900.*

A.D. 1900.

*Ossett  
Order.*

- (6.) The expressions "the County" and "the County Council" mean respectively the County of the West Riding of Yorkshire and the County Council of that County.
- (7.) The expression "the Borough maps" means the two maps each marked "Map of the Borough of Ossett as extended 1900" and sealed with the official seal of the Local Government Board.
- (8.) The expression "the added area" means the part of the Rural District added to the existing Borough by this Order.
- (9.) The expression "the Joint Burial Committee" means the Joint Committee appointed by the Parish Councils of Alverthorpe and Outwood and exercising the powers and duties of the authority under the Burial Acts 1852 to 1885 for parts of each of the Parishes of Alverthorpe and Outwood and the expression "the Burial Area" means the area comprising the said parts of the said parishes.
- (10.) The expressions "the Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894 and
- (11.) The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same.

Commence-  
ment of Order.

Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the Ninth day of November One thousand nine hundred :

Date of  
operation of  
Order for  
parish burgess  
lists &c.  
51 Vict. c. 10.

Provided that for the purposes of the parish burgess lists and burgess roll and other lists to be made for the Borough under the Municipal Corporations Acts of the lists of county electors and the county registers to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act of the lists and registers of parochial electors and any other lists or registers to be made in pursuance of the Act of 1894 and of all proceedings preliminary or relating to any municipal election to be held on the ordinary day of election in the year one thousand nine hundred this Order shall operate from the date of the Act of Parliament confirming this Order.

Extension of  
Borough.

Art. III.—(1.) The boundary of the existing Borough the area whereof is coloured pink on the Borough maps shall be altered so as to include in addition to that area the part of the Rural District which comprises the part of the Parish of Alverthorpe which is coloured green and brown on the Borough maps.

(2.) The boundary of the Borough shall be that shown by the red line on the Borough maps and the whole of the area within such boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the Borough.

Deposit of  
maps.

Art. IV.—(1.) One of the Borough maps shall be deposited in the office of the Local Government Board and the other shall be deposited by the town clerk of the existing Borough at his office within fourteen days after the date of this Order Copies of the Borough map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the clerk of the County Council to the clerk to the Rural Council to the clerk to the Guardians of the Dewsbury Union to the clerk to the Guardians of the Wakefield Union and to the Board of Agriculture.



(2.) Copies of or extracts from the Borough map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *primâ facie* evidence of the contents of such map so far as relates to the boundary of the Borough and such map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the Borough and any such person shall be entitled to a copy of or extract from such map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation. All fees so received shall be carried to the credit of the borough fund.

A.D. 1900.  
*Ossett*  
*Order.*  
 Copies of map  
 to be evidence.

Art. V. The powers and duties of the justices of the peace appointed for the existing Borough and of the clerk to such justices shall extend to and apply throughout the Borough. Provided that every person committing an offence in any part of the added area prior to the commencement of this Order shall be tried adjudicated on and dealt with as if this Order had not been made.

Powers and  
 duties of  
 justices &c.  
 extended.

Art. VI. For the purposes of the parish burgess lists and burgess roll and other lists to be made under the Municipal Corporations Acts and all matters in relation thereto the added area shall be deemed to have always been part of the Borough and the town clerk of the existing Borough shall be the town clerk of the Borough and if any difficulty arise in making out revising or otherwise dealing with such lists and roll or the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act or the lists and registers of parochial electors the Local Government Board may make such Order as shall appear to them to be necessary to give effect to the provisions of this Order and may vary so far as shall be necessary the provisions in force with regard to such lists, roll and registers.

Parish burgess  
 lists &c.

Art. VII. Subject as regards any future alteration of wards to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect:—

Wards.

(1.) For the purposes of the election of Councillors the Borough shall continue to be divided into four wards.

(2.) The portion of the added area which is coloured green on the Borough maps shall be included in the Central Ward and the portion of the added area which is coloured brown on the Borough maps shall be included in the East Ward.

(3.) The Councillors representing the said Central and East Wards who will not go out of office on the First day of November One thousand nine hundred shall be deemed from and after the commencement of this Order to represent those wards as altered.

Art. VIII. The unrepealed provisions of the Local Act and of the Confirmation Acts mentioned in the schedule to this Order so far as the last-mentioned Acts respectively relate to the Provisional Orders mentioned in that schedule as the same respectively are in force within the existing Borough at the commencement of this Order shall extend and apply to the Borough and any reference therein to the existing Borough and the Corporation shall be deemed to refer to the Borough and the Corporation thereof.

Local Act and  
 Orders.

Provided that nothing in this Order contained shall be deemed to authorise the Corporation to supply gas within that part of the limits of supply of the



[Ch. clxxxi.]      *Local Government Board's*      [63 & 64 Vict.]  
*Provisional Orders Confirmation (No. 12) Act, 1900.*

A.D. 1900. Wakefield Gas Light Company which is coloured blue on the plan signed in triplicate by Sir Augustus Frederick Godson Knight M.P. (the Chairman of the Committee of the House of Commons to whom the Bill for the Act to confirm this Order was referred) one copy of which plan has been deposited in the Private Bill Office of the House of Commons a second with the Clerk of the Parliaments in the House of Lords and the third in the town clerk's office at Ossett.

*Ossett  
Order.*

Byelaws &c.

Art. IX.—(1.) All byelaws and regulations and every list of tolls and table of fees and payments and scale of charges made by the Corporation which at the commencement of this Order are in force in the existing Borough shall thenceforth apply to the Borough until or except in so far as any such byelaws or regulations or list of tolls or table of fees and payments and scale of charges may be altered or repealed.

(2.) All byelaws and regulations made by the Rural Council and in force immediately before the commencement of this Order shall on that date cease to be in force in the added area except as regards any work commenced before that date or any work for which plans shall either have been approved by the Rural Council before that date or shall have been sent to the surveyor or clerk to the Rural Council one month at least before that date and shall not have been disapproved by that Council. As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of such work in like manner and with the like effect as if such byelaws had been made by the Corporation and as if the Corporation and the Borough were referred to therein instead of the Rural Council and the Rural District respectively. Provided that any proceedings which might have been taken by the Rural Council against any person for any offence committed before the commencement of this Order against any byelaws and regulations made by the Rural Council and in force on that date in the added area may be taken by the Corporation as if those byelaws and regulations had remained in force and the Corporation had been substituted therein for the Rural Council.

(3.) For the purposes of the Elementary Education Acts 1870 to 1899 all byelaws in force in the existing Borough at the commencement of this Order shall thenceforth apply to the Borough until revoked or altered and from and after that date any byelaws made by the School Board for the Parish of Alverthorpe shall cease to be in force in the added area.

Town clerk  
and other  
officers  
continued.

Art. X.—(1.) The town clerk and all other officers and servants of the Corporation of the existing Borough who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the Borough and shall hold their offices by the same tenure as at that date.

Borough  
auditors.

(2.) The auditors who are in office at the commencement of this Order shall continue in office and shall be the borough auditors until the next ordinary day of election of borough auditors.

Compensation  
to existing  
officers.

Art. XI.—(1.) Every officer and servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary shall be entitled



to have compensation paid to him by the Corporation for such pecuniary loss and in determining such compensation regard shall be had to the conditions and other circumstances required by sub-section (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid in the case of any such officer or servant whose office or employment relates wholly or partly to sanitary purposes as defined by the Public Health Act 1875 out of the district fund and general district rate of the Borough and in the case of any other such officer or servant out of the borough fund of the Borough and the provisions of sub-sections (2) to (7) of the said Section 120 shall apply with such modifications (if any) as may be required. Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

A.D. 1900.  
*Ossett  
Order.*

(2.) Any such officer or servant whose salary shall be reduced on the ground that his duties have been diminished in consequence hereof shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

Art. XII.—(1.) If at the commencement of this Order any action or proceeding or any cause of action or proceeding is pending or existing by or against the Rural Council in relation exclusively to any part of the added area the same shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Corporation of the Borough.

*Actions &c.  
not to abate.*

(2.) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by the Rural Council or their predecessors in relation exclusively to any part of the added area shall be of as full force and effect against or in favour of the Corporation of the Borough and may be continued and enforced as fully and effectually as if instead of the Rural Council or their predecessors the Corporation had done or suffered the same or been a party thereto.

*Saving for  
contracts &c.*

Art. XIII. All property vested in the Corporation at the commencement of this Order for the benefit of the existing Borough shall be held by the Corporation for the benefit of the Borough and the Corporation shall hold enjoy and exercise for the benefit of the Borough all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing Borough and all liabilities which on the date aforesaid attached to the Corporation in respect of the existing Borough shall from and after that date attach to them in respect of the Borough.

*Corporation  
property &c.*

Art. XIV. Subject to the provisions of this Order:—

(1.) All property and liabilities which immediately before the commencement of this Order are vested in or attach to the Rural Council in relation exclusively to any part of the added area shall be transferred to vested in and attach to the Corporation as Urban District Council and any property and liabilities vested in or attached to the Rural Council in relation to any part of the added area conjointly with any other area shall be a matter for adjustment under Section 62 of the Act of 1888.

*Property &c. of  
Rural Council.*

(2.) The Rural Council shall cease to exercise any powers or have any duties within any part of the added area.

*Cesser of  
jurisdiction of  
Rural Council.*



[Ch. clxxxi.]      *Local Government Board's*      [63 & 64 Vict.]  
*Provisional Orders Confirmation (No. 12) Act, 1900.*

A.D. 1900.

Ossett  
*Order.*

Arrears of  
rates &c.

(3.) All arrears of rates made by any Overseers of the Poor for the purposes of the Public Health Acts or for highway expenses which at the commencement of this Order are due or owing in respect of hereditaments in the added area may be collected and recovered as if this Order had not been made and when collected and recovered shall be applied towards the discharge of any precept of the Rural Council which at that date shall be in force and not satisfied and the balances if any shall be paid to the Corporation.

Mortgage debts  
of Corporation.

Art. XV. So much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the borough fund and borough rate of the existing Borough shall be charged upon the borough fund and borough rate of the Borough and so much of any sums borrowed by the Corporation as will at that date be owing and charged upon the district fund and general district rates of the existing Borough shall be charged upon the district fund and general district rates of the Borough and all such sums shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

Diminution of  
Burial Area.

Art. XVI.—(1.) The added area shall cease to form part of the Burial Area and the inhabitants of the added area shall cease to have any rights of burial in the burial ground provided for the Burial Area :

Provided that nothing herein contained shall prejudice or affect any exclusive right of burial or any right of one or more burials or any right of placing any monument tablet or gravestone or any similar right which any person may have acquired in relation to such burial ground prior to the commencement of this Order.

Mortgage debts  
of Burial  
Area.

(2.) The liability of the added area for the repayment of any moneys borrowed for the purposes of the Burial Acts 1852 to 1885 in respect of the Burial Area and for the payment of interest on such moneys shall be a matter for adjustment under Section 62 of the Act of 1888 :

Provided that nothing herein contained shall prejudice or affect any mortgage or other security which may have been given in respect of any moneys so borrowed or the rights and powers of the persons entitled under such mortgage or other security to enforce the same as if this Order had not been made.

Differential  
rating in added  
area.

Art. XVII. The general district rates to be levied in the added area shall not in any one year during a period of fifteen years from the commencement of this Order exceed such an amount in the pound as when added to the poor rate and to the borough rate and any other rate made by the Corporation in the same year will in respect of the assessment of any hereditament included in any such rate make up a total rate of four shillings and ninepence on each pound of the rateable value of such hereditament.

Adoptive Acts.

Art. XVIII. The provisions of the Infectious Disease (Prevention) Act 1890 the Public Health Acts Amendment Act 1890 and the Public Libraries Acts 1892 and 1893 shall be in force in and apply to the Borough as if the same had been adopted therein.



A.D. 1900:

*Ossett  
Order.*

Art. XIX. Subject to the provisions of Section 54 of the Act of 1888—

- (1.) The added area shall be included in the Ossett Electoral Division of the County and the Alverthorpe Electoral Division shall be diminished accordingly. Electoral Divisions and County Councillor.
- (2.) The person who immediately prior to the commencement of this Order is the County Councillor representing the said Ossett Electoral Division shall from and after that date represent that division as hereby altered as if he had been originally elected to represent the division as hereby altered.

Art. XX. The added area shall be separated from the Parish of Alverthorpe and shall be amalgamated with the Township of Ossett. Alteration of parishes.

Art. XXI. The persons who at the commencement of this Order are the Guardians of the Poor of the Dewsbury Union representing the Township of Ossett shall represent that township as altered by this Order as if they had been originally elected to represent such altered township. Guardians.

Art. XXII. Nothing in this Order shall affect the ecclesiastical divisions of any existing parish or township or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment which now is applicable for the benefit of any existing parish or township. Ecclesiastical divisions and charities.

Art XXIII.—(1.) Until a new valuation list is made the portions of the valuation list of the Parish of Alverthorpe which relate to hereditaments in the added area shall be deemed to form part of the valuation list of the Township of Ossett. Valuation lists.

(2.)—(a.) Subject to any future revision the basis or standard for county rate for the County shall be deemed to be altered by the deduction from the amount appearing in such basis or standard as the total annual value of the property in the Parish of Alverthorpe of such a sum as will represent the annual value of the property in the added area and by the addition of such sum to the amount appearing in such basis or standard as the total annual value of the property in the Township of Ossett. County rate basis.

(b.) For the purposes of this Article the sum which will represent the annual value of the property in the added area shall be such an amount as in relation to the amount appearing in the basis or standard of county rate as the total annual value of the existing parish is in the same proportion as the assessable value of the property in the added area bears to the total assessable value of the property in the existing parish.

(c.) For the purposes of this Article assessable value means one-half of the rateable value of the agricultural land according to the valuation list for the time being in force in the existing parish together with the rateable value according to such list of the buildings and other hereditaments not being agricultural land.

Art. XXIV. For the purposes of the registers of persons entitled to vote at an election of Members of Parliament of the register of parochial electors and of jury lists the parish or township affected by this Order shall be deemed to continue unaltered until the new registers come into operation : Saving for existing lists of parliamentary voters &c.

Provided that for the purposes of any election under the Act of 1894 to be held for any area affected by this Order and of the holding of Parish Meetings in



[Ch. clxxxi.]      *Local Government Board's*      [63 & 64 VICT.]  
*Provisional Orders Confirmation (No. 12) Act, 1900.*

A.D. 1900.      the parish affected by this Order the County Council shall as soon as may be practicable after the commencement of this Order cause the register of parochial electors to be altered in such manner as may be necessary to give effect to the alterations made by this Order.

*Ossett Order.*

Settlement of paupers.

Art. XXV.—(1.) Every person who has acquired or who on or before the commencement of this Order shall acquire a settlement in the existing parish or township affected by this Order shall be deemed to have acquired a settlement in the parish or township comprising the area in which the acts or circumstances conferring such settlement shall have been done or occurred or if such acts or circumstances shall have been done or occurred in more than one parish or township such settlement shall be in the parish or township comprising the place of residence of such person at the time of acquiring such settlement.

Irremovability of paupers.

(2.) Any person who shall have acquired a status of irremovability from the existing parish or township affected by this Order shall be deemed to have acquired a status of irremovability from the parish or township comprising the area in which he shall reside at the commencement of this Order (or if he shall then be in receipt of relief) from the parish or township comprising the area in which he was residing at the time of becoming chargeable.

Residence of paupers.

(3.) For all purposes of settlement and removal residence prior to the commencement of this Order in the added area shall be deemed to be residence in the Township of Ossett.

Saving for contribution orders and precepts.

Art. XXVI. Notwithstanding the alteration effected in the areas of parishes or townships by this Order all contribution orders made by the Guardians of the Poor of the Dewsbury Union and by the Guardians of the Poor of the Wakefield Union and all precepts made by the Rural Council before the commencement of this Order shall be as valid in law as if this Order had not been made.

Arrears of rates.

Art. XXVII. All recoverable arrears of rates which at the commencement of this Order are due or owing in respect of hereditaments in the added area shall be collected and recovered by the Overseers of the Poor of the existing parish comprising that area as if this Order had not been made.

Short title.

Art. XXVIII. This Order may be cited as the Ossett Order 1900.

The SCHEDULE above referred to.

PART I.—LOCAL ACT.

| Session and Chapter. | Title.                                         |
|----------------------|------------------------------------------------|
| 38 Vict. c. lxix.    | The Ossett-cum-Gawthorpe Local Board Act 1875. |



[63 & 64 Vict.]      *Local Government Board's*      [Ch. clxxxi.]  
*Provisional Orders Confirmation (No. 12) Act; 1900.*

PART II.—CONFIRMATION ACTS.

A.D. 1900.

| Session and Chapter.      | Short Title.                                                                          | Order relating to Ossett thereby confirmed. | <i>Ossett Order.</i> |
|---------------------------|---------------------------------------------------------------------------------------|---------------------------------------------|----------------------|
| 43 & 44 Vict. c. lxxxvi.  | The Local Government Board's Provisional Orders Confirmation (Aberavon &c.) Act 1880. | The Ossett Order 1880.                      |                      |
| 61 & 62 Vict. c. lxxxii.  | The Local Government Board's Provisional Orders Confirmation (No. 9) Act 1898.        | The Ossett Order 1898.                      |                      |
| 61 & 62 Vict. c. xxxviii. | The Electric Lighting Orders Confirmation (No. 2) Act 1898.                           | The Ossett Electric Lighting Order 1898.    |                      |

Given under the Seal of Office of the Local Government Board this  
Fifteenth day of May One thousand nine hundred.

(L.S.)

HENRY CHAPLIN President.

S. B. PROVIS Secretary.

CITY OF WAKEFIELD.

*Wakefield Order.*

*Provisional Order made in pursuance of Sections 54 and 59 of the  
Local Government Act 1888.*

- To the Mayor Aldermen and Citizens of the City of Wakefield ;—
- To the Justices of the Peace for the said City ;—
- To the School Board for the said City ;—
- To the Justices of the Peace for the County of the West Riding of  
Yorkshire in Quarter Sessions assembled ;—
- To the County Council of the West Riding of Yorkshire ;—
- To the Rural District Council of Wakefield ;—
- To the Guardians of the Poor of the Wakefield Union ;—
- To the Parish Council of Alverthorpe ;—
- To the School Board for the Parish of Alverthorpe ;—
- To the Overseers of the Poor of each of the Parishes of Alverthorpe and  
Wakefield ;—
- To the Joint Committee appointed by the Parish Councils of Alverthorpe  
and Outwood and exercising the powers and duties of the Authority  
under the Burial Acts 1852 to 1885 ;—

And to all others whom it may concern.

WHEREAS by Section 54 of the Local Government Act 1888 the Local  
Government Board are empowered to make a Provisional Order for altering the

51 & 52 Vict.  
c. 41.



[Ch. clxxxi.]      *Local Government Board's*      [63 & 64 VICT.]  
*Provisional Orders Confirmation (No. 12) Act, 1900.*

A.D. 1900. boundary of any Borough and by such Order to divide or alter any electoral division ;

*Wakefield  
Order.*

And whereas the City of Wakefield is a Borough within the meaning of the Local Government Act 1888 and the inhabitants are a body corporate by the name of the Mayor Aldermen and Citizens of the City of Wakefield and act by the Council of the said City which now consists of the Mayor (who is also an Alderman) seven other Aldermen and twenty-four Councillors and the said City is for the purposes of the election of Councillors divided into seven wards ;

And whereas the said City is an Urban District of which the Mayor Aldermen and Citizens acting by the council are the Urban District Council ;

And whereas the said City has a separate commission of the peace and a separate police force ;

And whereas the unrepealed provisions of the Local Acts and Confirmation Acts mentioned in the schedule to this Order so far as the last-mentioned Acts relate to the Provisional Orders mentioned in that schedule are in force in the said City ;

53 & 54 Vict.  
c. 59.

And whereas the Urban District Council have adopted the provisions of Parts II. III. and IV. of the Public Health Acts Amendment Act 1890 and those provisions are accordingly in force in the said City ;

9 & 10 Vict. c. 74.  
10 & 11 Vict. c. 61.  
41 & 42 Vict. c. 14.  
45 & 46 Vict. c. 30.  
59 & 60 Vict. c. 59.  
62 & 63 Vict. c. 29.

And whereas the Baths and Washhouses Acts 1846 to 1899 are in force in the said City ;

15 & 16 Vict.  
c. 85.

And whereas the Council of the said City are under the Burial Acts 1852 to 1885 the Burial Board for the said City ;

48 & 49 Vict.  
c. 21.

And whereas the Parish of Alverthorpe is a contributory place in the Rural District of Wakefield and is subject to the jurisdiction of the Rural District Council of Wakefield ;

And whereas the predecessors of the said Rural District Council adopted the provisions of—

53 & 54 Vict.  
c. 34.

(a.) The Infectious Disease (Prevention) Act 1890 and

(b.) Part III. of the Public Health Acts Amendment Act 1890 which are applicable to Rural Districts ;

and those provisions are accordingly in force in the said Rural District ;

And whereas the said City is co-extensive with the Parish of Wakefield in the Wakefield Union and that parish is for the purposes of the election of Guardians of the Poor divided into two wards ;

And whereas the said Parish of Alverthorpe in the Wakefield Union is for the purposes of the election of Rural District Councillors divided into three wards termed respectively the North Ward the South Ward and the East Ward for each of which one Rural District Councillor is elected ;

And whereas the said City comprises two electoral divisions of the County of the West Riding of Yorkshire termed respectively the North Wakefield Electoral Division and the South Wakefield Electoral Division and the said Parish of Alverthorpe is included in the Alverthorpe Electoral Division of that County ;

And whereas the said Parish of Alverthorpe is a Rural Parish within the meaning of the Local Government Act 1894 for which a Parish Council has been established ;



[63 & 64 VICT.]      *Local Government Board's*      [Ch. clxxxii.]  
*Provisional Orders Confirmation (No. 12) Act, 1900.*

And whereas by virtue of sub-section (2) of Section 53 of the Local Government Act 1894 the powers and duties of the Authority under the Burial Acts 1852 to 1885 for the area now comprised in parts of each of the Parishes of Alverthorpe and Outwood were transferred to the Parish Councils of Alverthorpe and Outwood and such powers and duties are exercised by a Joint Committee appointed in pursuance of the said sub-section ;

A.D. 1900.

*Wakefield  
Order.*

And whereas by virtue of the Elementary Education Acts 1870 to 1899 the said City and the said Parish of Alverthorpe are School Districts for each of which a School Board has been established ;

And whereas by the Ossett Order 1900 it is provided that on the Ninth day of November One thousand nine hundred the boundary of the Borough of Ossett shall be altered so as to include in addition to the area of that Borough that part of the Rural District of Wakefield which comprises the part of the said Parish of Alverthorpe indicated in that Order and that on the said date the said part of the said Parish shall be amalgamated with the Township of Ossett :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 54 and 59 of the Local Government Act 1888 and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect :—

51 & 52 Vict.  
c. 41.

Art. I. In this Order—

Definitions.

- (1.) The expression "the commencement of this Order" means the Ninth day of November One thousand nine hundred.
- (2.) The expression "the existing City" means the City of Wakefield as it existed immediately prior to the commencement of this Order.
- (3.) The expression "the City" means the existing City as extended by this Order.
- (4.) The expression "the Corporation" means the Mayor Aldermen and Citizens of the existing City or of the City (as the context may require) acting by the council.
- (5.) The expressions "the Rural District" and "the Rural Council" mean respectively the Rural District of Wakefield and the Rural District Council of that district.
- (6.) The expressions "the County" and "the County Council" mean respectively the County of the West Riding of Yorkshire and the County Council of that County.
- (7.) The expression "the City maps" means the two maps each marked "Map of the City of Wakefield as extended 1900" and sealed with the official seal of the Local Government Board.
- (8.) The expression "the added area" means the part of the Rural District added to the existing City by this Order.
- (9.) The expressions "the existing City School Board" "the City School Board" and "the Alverthorpe School Board" mean respectively the School Board for the existing City the School Board for the City and the School Board for the Parish of Alverthorpe.



[Ch. clxxxi.]      *Local Government Board's*      [63 & 64 Vict.]  
*Provisional Orders Confirmation (No. 12) Act, 1900.*

A.D. 1900.

*Wakefield  
Order.*

(10.) The expression "the Joint Burial Committee" means the Joint Committee appointed by the Parish Councils of Alverthorpe and Outwood and exercising the powers and duties of the Authority under the Burial Acts 1852 to 1885 for parts of each of the Parishes of Alverthorpe and Outwood and the expression "the Burial Area" means the area comprising the said parts of the said Parishes.

(11.) The expressions "the Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894 and

(12.) The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same.

Commence-  
ment of Order.

Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the Ninth day of November One thousand nine hundred:

Date of  
operation of  
Order for  
parish burgess  
lists &c.  
51 Vict. c. 10.

Provided that for the purposes of the parish burgess lists and burgess roll and other lists to be made for the City under the Municipal Corporations Acts of the lists of county electors and the county registers to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act of the lists and registers of parochial electors and any other lists or registers to be made in pursuance of the Act of 1894 and of all proceedings preliminary or relating to any municipal election to be held on the ordinary day of election in the year one thousand nine hundred this Order shall operate from the date of the Act of Parliament confirming this Order.

Extension of  
City.

Art. III.—(1.) The boundary of the existing City the area whereof is coloured pink on the City maps shall be altered so as to include in addition to that area the part of the Rural District which comprises the part of the Parish of Alverthorpe which is coloured green on the City maps.

(2.) The boundary of the City shall be that shown by the red line on the City maps and the whole of the area within such boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the City.

Deposit of  
maps.

Art. IV.—(1.) One of the City maps shall be deposited in the office of the Local Government Board and the other shall be deposited by the town clerk of the existing City at his office within fourteen days after the date of this Order Copies of the City map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the clerk of the County Council to the clerk to the Rural Council and to the Board of Agriculture.

Copies of map  
to be evidence.

(2.) Copies of or extracts from the City map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *primâ facie* evidence of the contents of such map so far as relates to the boundary of the City and such map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the City and any such person shall be entitled to a copy of or extract from such map certified by the town clerk to be true on payment of a reasonable fee to be determined by



[63 & 64 VICT.]      *Local Government Board's*      [Ch. clxxxi]  
*Provisional Orders Confirmation (No. 12) Act, 1900.*

A.D. 1900.

the Corporation. All fees so received shall be carried to the credit of the City fund.

*Wakefield  
Order.*

Art. V. The powers and duties of the justices of the peace appointed for the existing City and of the clerk to such justices and of the police constables and other peace officers of the existing City shall extend to and apply throughout the City. Provided that every person committing an offence in any part of the added area prior to the commencement of this Order shall be tried adjudicated on and dealt with as if this Order had not been made.

Powers and  
duties of  
justices &c.  
extended.

Art. VI. For the purposes of the parish burgess lists and burgess roll and other lists to be made under the Municipal Corporations Acts and all matters in relation thereto the added area shall be deemed to have always been part of the City and the town clerk of the existing City shall be the town clerk of the City and if any difficulty arise in making out revising or otherwise dealing with such lists and roll or the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act or the lists and registers of parochial electors the Local Government Board may make such Order as shall appear to them to be necessary to give effect to the provisions of this Order and may vary so far as shall be necessary the provisions in force with regard to such lists roll and registers.

Parish burgess  
lists &c.

Art. VII. The number of Councillors of the City shall be increased from twenty-four to twenty-seven and the number of Aldermen of the City shall be increased from eight to nine.

Number of  
Councillors  
and Aldermen.

Art. VIII. Subject as regards any future alteration of the ward hereby constituted to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect :—

Alteration of  
wards.

(1.) For the purposes of the election of Councillors the City shall be divided into eight wards.

(2.) The seven existing wards and the number of Councillors apportioned thereto shall remain unaltered.

(3.) A ward shall be constituted to be termed the Alverthorpe Ward and shall comprise the whole of the added area.

(4.) Three Councillors shall be assigned to the ward constituted by this Order.

Art. IX.—(1.) The first election of Councillors for the ward constituted by this Order shall be held on the First day of November One thousand nine hundred and the Mayor of the existing City or such other person as he shall appoint shall be the returning officer at the election for such ward.

First election  
of Councillors  
for new ward.

(2.) The first election of the additional Alderman shall take place on the Ninth day of November One thousand nine hundred and the Alderman shall at such election be chosen from among the Councillors elected for the Alverthorpe Ward or from among the persons qualified to be Councillors whose qualifying property is situate in that ward.

First election  
of Alderman.

Art. X.—(1.) The Councillors elected in the year one thousand nine hundred for the ward constituted by this Order shall retire as follows :—

Retirement of  
Councillors for  
new ward and  
Alderman  
elected in 1900.

(a.) The Councillor who is elected by the smallest number of votes on the First day of November One thousand nine hundred and one.



[Ch. clxxxi.]      *Local Government Board's*      [63 & 64 Vict.]  
*Provisional Orders Confirmation (No. 12) Act, 1900.*

A.D. 1900.  


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*Wakefield*  
*Order.*

(b.) The Councillor who is elected by the largest number of votes on the First day of November One thousand nine hundred and three.

(c.) The other Councillor on the First day of November One thousand nine hundred and two :

Provided that if for any reason it is doubtful which of the Councillors ought to retire on the dates above specified the Council of the City shall on the Ninth day of November One thousand nine hundred or at the next following quarterly meeting and not later by a majority of votes or in case of an equality of votes by the casting vote of the chairman determine which of the Councillors shall go out of office on the dates above specified respectively.

(2.) The additional Alderman elected for the City in the year one thousand nine hundred shall retire on the Ninth day of November One thousand nine hundred and four.

Local Acts and  
Orders.

Art. XI. The unrepealed provisions of the Local Acts and of the Confirmation Acts mentioned in the schedule to this Order so far as the last-mentioned Acts respectively relate to the Provisional Orders mentioned in that schedule and of any Local Act which may be passed during the present Session of Parliament as the same respectively are in force within the existing City at the commencement of this Order shall extend and apply to the City and any reference therein to the existing City and the Corporation shall be deemed to refer to the City and the Corporation thereof.

Byelaws &c.

Art. XII.—(1.) All byelaws and regulations and every list of tolls and table of fees and payments and scale of charges made by the Corporation which at the commencement of this Order are in force in the existing City shall thenceforth apply to the City until or except in so far as any such byelaws or regulations or list of tolls or table of fees and payments and scale of charges may be altered or repealed.

(2.) All byelaws and regulations made by the Rural Council and in force immediately before the commencement of this Order shall on that date cease to be in force in the added area except as regards any work commenced before that date or any work for which plans shall either have been approved by the Rural Council before that date or shall have been sent to the surveyor or clerk to the Rural Council one month at least before that date and shall not have been disapproved by that council. As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of such work in like manner and with the like effect as if such byelaws had been made by the Corporation and as if the Corporation and the City were referred to therein instead of the Rural Council and the Rural District respectively. Provided that any proceedings which might have been taken by the Rural Council against any person for any offence committed before the commencement of this Order against any byelaws and regulations made by the Rural Council and in force on that date in the added area may be taken by the Corporation as if those byelaws and regulations had remained in force and the Corporation had been substituted therein for the Rural Council.



A.D. 1900.

Art. XIII.—(1.) The town clerk and all other officers and servants of the Corporation of the existing City who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the City and shall hold their offices by the same tenure as at that date.

*Wakefield Order.*

Town clerk and other officers continued.

(2.) The auditors who are in office at the commencement of this Order shall continue in office and shall be the City auditors until the next ordinary day of election of City auditors.

City auditors.

Art. XIV.—(1.) Every officer and servant for whose case this Order does not otherwise specially provide and who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary shall be entitled to have compensation paid to him by the Corporation for such pecuniary loss and in determining such compensation regard shall be had to the conditions and other circumstances required by sub-section (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid in the case of any such officer or servant whose office or employment relates wholly or partly to sanitary purposes as defined by the Public Health Act 1875 out of the district fund and general district rate of the City and in the case of any other such officer or servant out of the city fund and city rate of the City and the provisions of sub-sections (2) to (7) of the said Section 120 shall apply with such modifications (if any) as may be required. Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

Compensation to existing officers.

(2.) Any such officer or servant whose salary shall be reduced on the ground that his duties have been diminished in consequence hereof shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

Art. XV.—(1.) If at the commencement of this Order any action or proceeding or any cause of action or proceeding is pending or existing by or against the Rural Council in relation exclusively to any part of the added area the same shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Corporation of the City.

Actions &c. not to abate.

(2.) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by the Rural Council or their predecessors in relation exclusively to any part of the added area shall be of as full force and effect against or in favour of the Corporation of the City and may be continued and enforced as fully and effectually as if instead of the Rural Council or their predecessors the Corporation had done or suffered the same or been a party thereto and the Rural Council shall at the commencement of this Order deliver to the Town Clerk of the City any such contract deed bond agreement or other instrument.

Saving for contracts &c.

Art. XVI.—(1.) Subject as herein-after provided all property vested in the Corporation at the commencement of this Order for the benefit of the existing City shall be held by the Corporation for the benefit of the City and the Corporation shall subject as aforesaid hold enjoy and exercise for the benefit

Corporation property &c.



[Ch. clxxxi.]      *Local Government Board's*      [63 & 64 Vict.]  
*Provisional Orders Confirmation (No. 12) Act, 1900.*

A.D. 1900.      of the City all the powers which at the date aforesaid are exerciseable by  
                     or vested in the Corporation for the benefit of the existing City and subject as  
     *Wakefield*      aforesaid all liabilities which on the date aforesaid attached to the Corporation  
     *Order.*      in respect of the existing City shall from and after that date attach to them in  
                     respect of the City.

(2.) The waterworks undertaking of the Corporation shall continue to be held by them in trust for the City of Wakefield as it existed immediately prior to the Ninth day of November One thousand eight hundred and ninety-five and any balance of the water revenue shall be applied in relief of the rates levied in the area of the said City as it so existed and any deficiency in the water revenue shall be made good out of the rate levied in the area of the said City as it so existed in pursuance of subdivision (2) of Article XVIII. of this Order.

Property &c. of  
Rural Council.

Art. XVII. Subject to the provisions of this Order:—

(1.) All property and liabilities which immediately before the commencement of this Order are vested in or attach to the Rural Council in relation exclusively to any part of the added area shall be transferred to vested in and attach to the Corporation as Urban District Council and any property and liabilities vested in or attached to the Rural Council in relation to any part of the added area conjointly with any other area shall be a matter for adjustment under Section 62 of the Act of 1888.

Cesser of  
juri-diction of  
Rural Council.  
  
Arrears of  
rates &c.

(2.) The Rural Council shall cease to exercise any powers or have any duties within any part of the added area.

(3.) All arrears of rates made by any Overseers of the Poor for the purposes of the Public Health Acts or for highway expenses which at the commencement of this Order are due or owing in respect of hereditaments in the added area may be collected and recovered as if this Order had not been made and when collected and recovered shall be applied towards the discharge of any precept of the Rural Council which at that date shall be in force and not satisfied and the balances if any shall be paid to the Corporation.

Water debt of  
Corporation.

Art. XVIII.—(1.) So much of any sums borrowed by the Corporation for the purposes of their water undertaking as remains outstanding at the commencement of this Order shall so far as such sums respectively are now charged upon and payable out of the rates leviable in the area comprising the City of Wakefield as it existed immediately prior to the Ninth day of November One thousand eight hundred and ninety-five be charged upon and payable out of the rates to be levied in pursuance of subdivision (2) of this Article.

(2.) The Corporation shall from time to time make and levy such a rate in the nature of a general district rate upon the aforesaid area as will be sufficient to raise the sums required to be raised by rates for the repayment of the several sums to which subdivision (1) of this Article applies and for the repayment of any sums borrowed after the commencement of this Order for the purposes of their water undertaking or for the payment of interest on such sums and for the payment of any deficiency in the water revenue.

Mortgage debt  
of Corporation

(3.) So much of any other sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the district fund and



general district rates of the existing City shall be charged upon the district fund and general district rates of the City and so much of any sums borrowed by the Corporation as will at that date be owing and charged upon the city fund and city rate of the existing City shall be charged upon the city fund and city rate of the City.

A.D. 1900.

*Wakefield*  
*Order.*

for other than  
waterworks  
purposes.

(4.) All sums to which this Article applies shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

Art. XIX.—(1.) For the purposes of the Elementary Education Acts 1870 to 1899—

Alteration of  
school  
district &c.

(a.) The members of the existing City School Board who shall be in office at the commencement of this Order shall be deemed to have been elected and shall be the School Board for the City.

(b.) Any byelaws in force in the existing City at the commencement of this Order shall thenceforth apply to the City until revoked or altered and any byelaws made by the Alverthorpe School Board shall cease to be in force in the added area.

(2.) The school site or sites and buildings with their furniture and fittings belonging to the Alverthorpe School Board which are situate in the added area shall be transferred to and vest in the City School Board for all the estate and interest therein of the Alverthorpe School Board and all contracts debts liabilities and engagements which at that date are existing or are owing by or attach to the Alverthorpe School Board in respect of such school site or sites buildings furniture or fittings or with respect to the officers teachers and servants of the school or schools so transferred shall enure to and be discharged and satisfied by the City School Board :

Provided that any doubt or difference arising under this subdivision of this Article shall be settled by arbitration in manner provided by Section 62 of the Act of 1888.

(3.) The liability for repayment of so much of any loans raised by the Alverthorpe School Board in respect of the school site or sites buildings furniture or fittings so transferred to the City School Board as shall be owing at the commencement of this Order and for the payment of the interest thereon shall be transferred to and attach to the City School Board and so much of such loans as shall be owing on that date together with so much of any sums borrowed by the existing City School Board as shall be owing on that date shall be charged on the school fund and the local rate for the time being chargeable with the expenses of the City School Board and all such sums shall be repaid by the City School Board within the respective periods if any for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

(4.) Every officer teacher or servant of the Alverthorpe School Board who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution



[Ch. clxxxi.]      *Local Government Board's*      [63 & 64 VICT.]  
*Provisional Orders Confirmation (No. 12) Act, 1900.*

A.D. 1900.  
 —  
*Wakefield*  
*Order.*

or loss of fees or salary shall be entitled to have compensation paid to him by the City School Board and in determining such compensation regard shall be had to the conditions and other circumstances required by sub-section (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid out of the school fund and local rate for the time being chargeable with the expenses of the City School Board and the provisions of sub-sections (2) to (7) of that section shall apply with such modifications (if any) as may be required.

(5.) Any arrears of rates made to satisfy the precept of the Alverthorpe School Board which remain due at the commencement of this Order in respect of hereditaments in the added area may be collected and recovered by the overseers of the poor as if this Order had not been made and when collected and recovered shall be applied towards any precept of that School Board which at that date shall be in force and not satisfied and the balance if any shall be paid to the City School Board.

Council to be  
 Burial Board

Art. XX.—(1.) The Council of the City shall be the Burial Board for the City and shall have within the City to the exclusion of any other burial authority all the powers rights duties and liabilities of a Burial Board under the Burial Acts 1852 to 1885.

Cesser of  
 rights of burial  
 of inhabitants  
 in added area.

(2.) Nothing in this Order shall prejudice or affect any right of burial which any parishioner or inhabitant of the added area may have acquired prior to the commencement of this Order in relation to the burial ground provided for the Burial Area or any exclusive right of burial or any right of one or more burials or any right of placing any monument tablet or gravestone or any similar right which any person may have acquired prior to the commencement of this Order in relation to such burial ground.

Mortgage debts  
 of Burial Area.

(3.) The liability of the added area for the repayment of any moneys borrowed for the purposes of the Burial Acts 1852 to 1885 in respect of the Burial Area and for the payment of interest on such moneys shall be a matter for adjustment under Section 62 of the Act of 1888 :

Provided that nothing herein contained shall prejudice or affect any mortgage or other security which may have been given in respect of any moneys so borrowed or the rights and powers of the persons entitled under such mortgage or other security to enforce the same as if this Order had not been made.

County police.

Art. XXI.—(1.) At the commencement of this Order such members if any of the police force of the County as shall be determined by agreement to be made as soon as practicable after the date of the Act of Parliament confirming this Order between the Standing Joint Committee of the County and the Watch Committee of the existing City or in default of such agreement as shall be determined by a Secretary of State shall be transferred to and become part of the police force of the City and any member of the county police force so transferred shall hold office upon the same tenure and upon the same terms and conditions as if this Order had not been made and while he performs the same or similar duties his remuneration and the pension (if any) to which he is entitled shall not be less than they would have been if this Order had not been



[63 & 64 VICT.]      *Local Government Board's*      [Ch. clxxxi.]  
*Provisional Orders Confirmation (No. 12) Act, 1900.*

made nor shall they be less than those of officers in the same or a similar grade of the city police force : A.D. 1900.

Provided that no member of the county police force shall be transferred as aforesaid without his consent. *Wakefield Order.*

(2.) The provisions of Section 15 (2) of the Police Act 1890 shall extend and apply to and in relation to any member of the police force transferred under the power of this Article as if such member had removed with the written sanction of the Chief Constable of the County. 53 & 54 Vict.  
c. 45.

Art. XXII. The general district rates to be levied in the added area shall not in any one year during a period of fifteen years from the commencement of this Order exceed such an amount in the pound as when added to the poor rate and to the city rate and any other rate made by the Corporation in the same year will in respect of the assessment of any hereditament included in any such rate make up a total rate of five shillings and sixpence on each pound of the rateable value of such hereditament and shall not in any one year during the said period exceed the rate on each pound of the rateable value of property of the same kind which may be assessed in any general district rate made in respect of the area comprising the City of Wakefield as it existed immediately prior to the Ninth day of November One thousand eight hundred and ninety-five and not being a rate in the nature of a general district rate levied in pursuance of subdivision (2) of Article XVIII. of this Order. Differential rating in added area.

Art. XXIII.—(1.) The provisions of the Baths and Washhouses Acts 1846 to 1899 and of Parts II. III. and IV. of the Public Health Acts Amendment Act 1890 shall be in force in and apply to the City as if the same had been adopted therein. Adoptive Acts.

(2.) The provisions of the Infectious Disease (Prevention) Act 1890 shall subject to the provisions of that Act and of any Acts amending the same cease to be in force in any part of the added area.

Art. XXIV. Subject to the provisions of Section 54 of the Act of 1888—

(1.) The added area shall be included in the South Wakefield Electoral Division of the County and the Alverthorpe Electoral Division shall be diminished accordingly and the said South Wakefield Electoral Division as hereby altered and the said Alverthorpe Electoral Division as hereby altered and as altered by the Ossett Order 1900 shall continue to be electoral divisions of the County. Electoral Divisions and County Councillors

(2.) The persons who immediately prior to the commencement of this Order are the County Councillors representing the said electoral divisions shall from and after that date represent those divisions as altered as aforesaid as if they had been originally elected to represent the divisions as so altered.

Art. XXV. The added area shall be separated from the Parish of Alverthorpe and shall be amalgamated with the Parish of Wakefield. Alteration of parishes.

Art. XXVI. The Parish Council of the Parish of Alverthorpe shall be deemed to have been elected and shall be the Parish Council for that parish as altered by this Order and by the Ossett Order 1900 and the said Parish Council shall cease to exercise any powers or duties within any part of the added area. Parish Council.



[Ch. clxxxi.]      *Local Government Board's*      [63 & 64 VICT.]  
*Provisional Orders Confirmation (No. 12) Act, 1900.*

A.D. 1900.

*Wakefield  
Order.*

Guardians and  
Rural District  
Councillors.

Art. XXVII.—(1.) For the purposes of the election of Guardians the Parish of Wakefield as extended by this Order shall be divided into three wards.

(2.) The two existing wards and the number of Guardians assigned thereto shall remain unaltered.

(3.) A ward shall be constituted to be termed the Alverthorpe Ward and shall comprise the whole of the added area.

(4.) The persons who at the commencement of this Order are the Rural District Councillors representing respectively the South and East Wards of the Parish of Alverthorpe shall cease to act as Rural District Councillors but shall continue to act as members of the Board of Guardians of the Wakefield Union and shall be deemed to be the Guardians elected for the Alverthorpe Ward as constituted by this Order and shall continue to hold office in that capacity until the day upon which they would have retired if this Order had not been made and subject to the provisions of Section 60 of the Act of 1894 at all future elections the number of Guardians elected for the said ward shall be two.

(5.) The person who at the commencement of this Order is the Rural District Councillor representing the North Ward of the Parish of Alverthorpe shall represent the Parish of Alverthorpe as altered by this Order and the Ossett Order 1900.

Ecclesiastical  
divisions and  
charities.

Art. XXVIII. Nothing in this Order shall affect the ecclesiastical divisions of any existing parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment which now is applicable for the benefit of any existing parish.

Valuation list.

Art. XXIX.—(1.) Until a new valuation list is made the portions of the valuation list of the Parish of Alverthorpe which relate to hereditaments in the added area shall be deemed to form part of the valuation list of the Parish of Wakefield.

County rate  
basis.

(2.)—(a.) Subject to any future revision the basis or standard for county rate for the County shall be deemed to be altered by the deduction from the amount appearing in such basis or standard as the total annual value of the property in the Parish of Alverthorpe of such a sum as will represent the annual value of the property in the added area and by the addition of such sum to the amount appearing in such basis or standard as the total annual value of the property in the Parish of Wakefield.

(b.) For the purposes of this Article the sum which will represent the annual value of the property in the added area shall be such an amount as in relation to the amount appearing in the basis or standard of county rate as the total annual value of the existing parish is in the same proportion as the assessable value of the property in the added area bears to the total assessable value of the property in the existing parish.

(c.) For the purposes of this Article assessable value means one-half of the rateable value of the agricultural land according to the valuation list for the time being in force in the existing parish together with the rateable value according to such list of the buildings and other hereditaments not being agricultural land.



A.D. 1900.

Art. XXX. For the purposes of the registers of persons entitled to vote at an election of Members of Parliament of the register of parochial electors and of jury lists the parishes affected by this Order shall be deemed to continue unaltered until the new registers come into operation :

*Wakefield Order.*

Saving for existing lists of parliamentary voters &c.

Provided that for the purposes of any election under the Act of 1894 to be held for any area affected by this Order and of the holding of Parish Meetings in any parish affected by this Order the County Council shall as soon as may be practicable after the commencement of this Order cause the register of parochial electors to be altered in such manner as may be necessary to give effect to the alterations made by this Order.

Art. XXXI.—(1.) Every person who has acquired or who on or before the commencement of this Order shall acquire a settlement in any existing parish affected by this Order shall be deemed to have acquired a settlement in the parish comprising the area in which the acts or circumstances conferring such settlement shall have been done or occurred or if such acts or circumstances shall have been done or occurred in more than one parish such settlement shall be in the parish comprising the place of residence of such person at the time of acquiring such settlement.

Settlement of paupers.

(2.) Any person who shall have acquired a status of irremovability from any existing parish affected by this Order shall be deemed to have acquired a status of irremovability from the parish comprising the area in which he shall reside at the commencement of this Order or (if he shall then be in receipt of relief) from the parish comprising the area in which he was residing at the time of becoming chargeable.

Irremovability of paupers.

(3.) For all purposes of settlement and removal residence prior to the commencement of this Order in the added area shall be deemed to be residence in the Parish of Wakefield.

Residence of paupers.

Art. XXXII. Notwithstanding the alteration effected in the areas of parishes by this Order all contribution orders made by the Guardians of the Poor of the Wakefield Union and all precepts made by the Rural Council before the commencement of this Order shall be as valid in law as if this Order had not been made.

Saving for contribution orders and precepts.

Art. XXXIII. All recoverable arrears of rates which at the commencement of this Order are due or owing in respect of hereditaments in the added area shall be collected and recovered by the Overseers of the Poor of the existing parish comprising that area as if this Order had not been made.

Arrears of rates.

Art. XXXIV. This Order may be cited as the Wakefield Order 1900.

Short title.



[Ch. clxxxi.]      *Local Government Board's*      [63 & 64 VICT.]  
*Provisional Orders Confirmation (No. 12) Act, 1900.*

A.D. 1900.

*Wakefield  
Order.*

The SCHEDULE above referred to.

PART I.—LOCAL ACTS.

| Session and Chapter.     | Title or Short Title.                            |
|--------------------------|--------------------------------------------------|
| 25 & 26 Vict. c. xcix.   | - The Wakefield Waterworks Act 1862.             |
| 36 Vict. c. xix.         | - The Wakefield Waterworks Act 1873.             |
| 37 & 38 Vict. c. cxlii.  | - The Wakefield Waterworks Act 1874.             |
| 39 & 40 Vict. c. ccxxii. | - The Wakefield Waterworks Act 1876.             |
| 40 & 41 Vict. c. cxviii. | - The Wakefield Improvement Act 1877.            |
| 43 & 44 Vict. c. lvii.   | - The Wakefield Corporation Waterworks Act 1880. |
| 50 & 51 Vict. c. lxxi.   | - The Wakefield Corporation Act 1887.            |
| 52 & 53 Vict. c. lxviii. | - The Wakefield Corporation Act 1889.            |
| 57 & 58 Vict. c. xcix.   | - The Wakefield Corporation Water Act 1894.      |
| 62 & 63 Vict. c. ccxlv.  | - The Wakefield Corporation Act 1899.            |

PART II.—CONFIRMATION ACTS.

| Session and Chapter.    | Short Title.                                                                             | Order relating to Wakefield thereby confirmed.      |
|-------------------------|------------------------------------------------------------------------------------------|-----------------------------------------------------|
| 16 Vict. c. xxiv.       | The Public Health Supplemental Act 1853 (No. 1).                                         | The Order dated 20th November 1852.                 |
| 41 & 42 Vict. c. clxii. | The Local Government Board's Provisional Orders Confirmation (Bournemouth &c.) Act 1878. | The Order dated 7th May 1878.                       |
| 57 & 58 Vict. c. cxiv.  | The Electric Lighting Orders Confirmation (No. 3) Act 1894.                              | Wakefield Corporation Electric Lighting Order 1894. |
| 59 Vict. c. xiii.       | The Local Government Board's Provisional Order Confirmation (No. 19) Act 1895 Session 2. | The City of Wakefield Order 1895.                   |

Given under the Seal of Office of the Local Government Board this  
Sixteenth day of May One thousand nine hundred.

(L.S.)

HENRY CHAPLIN President.  
S. B. PROVIS Secretary.

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